

PART II.

SCOTLAND.

A county force.	police	The chief constable or, where the chief constable is himself the appellant, the standing joint committee of the commissioners of supply and the county council.
A burgh force.	police	The chief constable or other body by whom the appellant was dismissed or required to resign or, where the chief constable is himself the appellant, the town council or other body by whom he was dismissed or required to resign.

CHAPTER 20.

An Act to amend the law with respect to customs
in the Isle of Man. [29th July 1927.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) On and from the twenty-fourth day of May, nineteen hundred and twenty-seven, in lieu of the customs duties theretofore payable on wines, there shall, until the first day of August, nineteen hundred and twenty-eight, be charged, levied and paid on wines removed or imported into the Isle of Man, in the case of wines of the description specified in the first column of the table contained in Part I of the First Schedule to this Act and not being Empire products, duties at the rates respectively specified in the second column of that table, and in the case of wines of the description specified in the first column of the table contained in Part II of the said schedule and being Empire products, duties at the rates respectively specified in the second column of that table. Duties on
wines.

(2) Subsection (2) of section eight of the Customs and Inland Revenue Act, 1890 (which provides that wine 53 & 54 Vict.
c. 8.

rendered sparkling in warehouse is to be deemed to be sparkling wine for the purpose of a certain duty imposed on sparkling wine), shall apply for the purpose of the duty imposed on sparkling wine by this section as it applied for the purpose of the duty mentioned in that subsection.

(3) In this section the expression "wine" includes the lees of wine, but does not include wine made in Great Britain or Northern Ireland, and the expression "Empire products" means such Empire products as are entitled to a preferential rate under section five of the Isle of Man (Customs) Act, 1919.

9 & 10
Geo. 5. c. 74.
Duty on
sweets.

2.—(1) On and from the twenty-fourth day of May, nineteen hundred and twenty-seven, until the first day of August, nineteen hundred and twenty-eight, there shall be charged, levied and paid on sweets removed or imported into the Isle of Man a duty of customs at the rate of one shilling for every gallon.

(2) In this section the expression "sweets" means any liquor which is made in Great Britain or Northern Ireland from fruit and sugar, or from fruit or sugar mixed with any other material, and which has undergone a process of fermentation in the manufacture thereof, and includes British wines, made wines, mead, and metheglin.

Duties on
spirits.
11 & 12
Geo. 5. c. 40.
16 & 17
Geo. 5. c. 27.

3. The additional duties of customs on spirits removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1921, as amended by the Isle of Man (Customs) Act, 1926, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-seven, until the first day of August, nineteen hundred and twenty-eight.

Duties on
ale or beer.
15 & 16
Geo. 5. c. 56.

4. The additional duties of customs on ale or beer removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1925, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-seven, until the first day of August, nineteen hundred and twenty-eight.

Duties on
hops.

5. The duties of customs on hops, and extracts, essences and other similar preparations made from hops, removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1925, shall continue

to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-seven, until the first day of August, nineteen hundred and twenty-eight.

6.—(1) On and from the twenty-fourth day of May, nineteen hundred and twenty-seven, in lieu of the customs duties theretofore payable on tobacco, there shall, until the first day of August, nineteen hundred and twenty-eight, be charged, levied and paid on tobacco removed or imported into the Isle of Man, in the case of tobacco of the descriptions specified in the first column of the table contained in Part I of the Second Schedule to this Act and not being Empire products, duties at the rates respectively specified in the second column of that table, and in the case of tobacco of the descriptions specified in the first column of the table contained in Part II of the said schedule and being Empire products, duties at the rates respectively specified in the second column of that table. Duties on tobacco.

(2) In this section the expression “ Empire products ” means such Empire products as are entitled to a preferential rate under section five of the Isle of Man (Customs) Act, 1919, and in the said schedule the expression “ stripped tobacco ” means any leaf tobacco of which the leaf is not complete by reason of the removal of the stalk or midrib or of some portion thereof, but tobacco shall not be deemed to be stripped tobacco solely by reason of its having been subjected to such process of butting as the Commissioners of Customs and Excise allow.

7.—(1) On and from the twenty-fourth day of May, nineteen hundred and twenty-seven, in lieu of the customs duties theretofore payable on matches, there shall, until the first day of August, nineteen hundred and twenty-eight, be charged, levied and paid on matches removed or imported into the Isle of Man the duties specified in the Third Schedule to this Act. Duties on matches.

(2) For the purposes of the duties under this section, a match which has more than one point of ignition shall be reckoned as so many matches as there are points of ignition.

(3) The Commissioners of Customs and Excise may make regulations with respect to the collection of the duties under this section, and may for that purpose apply,

with the necessary modifications, to matches removed or imported into the Isle of Man, any enactments applicable to duties on matches imported into Great Britain or Northern Ireland.

Duties on
cocoa.
14 & 15
Geo. 5. c. 24.

8. The duties of customs on cocoa removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1924, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-seven, until the first day of August, nineteen hundred and twenty-eight.

Duties on
silk.

9. The duties of customs on silk or artificial silk removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1925, as amended by the Isle of Man (Customs) Act, 1926, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-seven, until the first day of August, nineteen hundred and twenty-eight.

Duty on
lace.

10.—(1) The duty of customs on lace removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1925, as amended by the Isle of Man (Customs) Act, 1926, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-seven, until the first day of August, nineteen hundred and twenty-eight.

(2) Subsection (2) of section ten of the Isle of Man (Customs) Act, 1926, shall have effect, and shall be deemed always to have had effect, as if after the words “ having regard to ” there were inserted the words “ the nature or small value of the articles, or in the case of articles containing lace or embroidery, having regard to.”

Duties on
motor cars,
&c.

11.—(1) The duties of customs on motor cars, including motor bicycles and motor tricycles, and their accessories and component parts, removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1925, as amended by the Isle of Man (Customs) Act, 1926, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-seven, until the first day of August, nineteen hundred and twenty-eight.

(2) The exemption in respect of tyres which is given by subsection (1) of section six of the Isle of Man (Customs) Act, 1925, from the customs duty thereby charged on such accessories and component parts shall be deemed to have ceased as from the twenty-fourth day of May, nineteen hundred and twenty-seven.

12.—(1) The duties of customs on—

- (a) musical instruments, including gramophones, pianolas and other similar instruments;
- (b) accessories and component parts of musical instruments, and records and other means of reproducing music;
- (c) clocks and watches, and component parts of clocks and watches; and
- (d) cinematograph films,

Duties on
musical
instruments,
clocks,
watches,
films, &c.

removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1925, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-seven, until the first day of August, nineteen hundred and twenty-eight.

(2) For the purpose of the customs duty charged on cinematograph films by subsection (1) of section six of the Isle of Man (Customs) Act, 1925, the expression "blank film" shall include, and as from the twenty-fourth day of May, nineteen hundred and twenty-seven, shall be deemed to have included, all photographic sensitized sheets or strips of celluloid or other similar material which are of a length of not less than twelve feet, whatever the width of the sheets or strips may be, and duty shall be charged on any such sheets or strips in proportion to their width.

13. The duties of customs on cutlery, gloves and mantles for incandescent lighting removed or imported into the Isle of Man imposed by section fourteen of the Isle of Man (Customs) Act, 1926, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-seven, until the first day of August, nineteen hundred and twenty-eight.

Duties on
cutlery,
gloves and
mantles for
incan-
descent
lighting.

14.—(1) On and from the twenty-fourth day of May, nineteen hundred and twenty-seven, until the first day of August, nineteen hundred and twenty-eight, there shall be charged, levied and paid on the removal

Duty on
translucent
or vitrified
pottery.

or importation into the Isle of Man of any translucent pottery or vitrified pottery (not being pottery made in Great Britain or Northern Ireland), which is either an article of a description commonly used in connection with the serving of food or drink or a component part of such an article, a customs duty at the rate of one pound and eight shillings for every hundredweight thereof.

(2) Subsections (2), (3) and (5) of section fourteen of the Isle of Man (Customs) Act, 1926, shall apply to the goods chargeable with duty under this section and to the duty imposed by this section as they apply to the articles chargeable with duty under that section and to the duties imposed by that section.

Amendment
of s. 13 of
Isle of Man
(Customs)
Act, 1926.

15. There shall be substituted for subsection (6) of section thirteen of the Isle of Man (Customs) Act, 1926, the following subsection:—

“(6) The Lieutenant Governor of the Isle of Man may by order exempt any article mentioned in the order which is liable to duty under this section from that duty if he is satisfied—

(a) that, having regard to the nature or small value of the article, it is inexpedient that the duty should be charged; or

(b) as respects any article which is so liable by reason only that some ingredient or part of the article is so liable, that it is inexpedient, having regard to the nature of that ingredient or part and to the smallness of its value in comparison with the total value of the article, that the duty should be charged; or

(c) that an order has been made by the Treasury under subsection (5) of section ten of the Finance Act, 1926 (which provides for the exemption of articles not made in sufficient quantities within His Majesty's Dominions), exempting the article from the duty imposed by section one of the Safeguarding of Industries Act, 1921, as amended by any subsequent enactment.”

16 & 17
Geo. 5. c. 22.

11 & 12
Geo. 5. c. 47.

16. Any order made by the Lieutenant-Governor of the Isle of Man under any section of this Act or under any other enactment for exempting any articles from duties of customs may be varied or amended by another order made under the same section of this Act or under that other enactment, as the case may be.

Power to vary or amend exemption orders.

17.—(1) This Act may be cited as the Isle of Man (Customs) Act, 1927.

Short title and repeal.

(2) The enactments set out in the Fourth Schedule to this Act are hereby repealed to the extent mentioned in the third column of that schedule.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

Description of Wine.	Rate of Duty per gallon.	
	s.	d.
PART I.		
Not exceeding 25 degrees proof spirit - - -	3	0
Exceeding 25 degrees and not exceeding 30 degrees, if in a Customs or Excise warehouse in Great Britain, Northern Ireland or the Isle of Man on the twenty-fourth day of April, nineteen hundred and twenty-seven, and delivered in the Isle of Man for home consumption between the twenty-fourth day of July, nineteen hundred and twenty-seven, and the first day of January, nineteen hundred and twenty-eight	5	0
Exceeding 25 degrees and not exceeding 42 degrees and not being wine chargeable under this part of this Schedule with duty at the rate of five shillings per gallon - - - - -	8	0
Every degree or fraction of a degree above 42 degrees an additional duty - - - - -	0	8
Sparkling, an additional duty - - - - -	12	6
Still, in bottle, an additional duty - - - - -	2	0
PART II.		
Not exceeding 27 degrees proof spirit - - -	2	0
Exceeding 27 degrees and not exceeding 42 degrees -	4	0
Every degree or fraction of a degree above 42 degrees an additional duty - - - - -	0	4
Sparkling, an additional duty - - - - -	6	3
Still, in bottle, an additional duty - - - - -	1	0

Section 6.

SECOND SCHEDULE.

Description of Tobacco.	Rate of Duty per lb.
PART I.	
Upon tobacco unmanufactured, namely :—	<i>s. d.</i>
Containing 10 lbs. or more of moisture in every 100 lbs. weight thereof—	
Unstripped - - - - -	8 10
Stripped - - - - -	8 10½
Containing less than 10 lbs. of moisture in every 100 lbs. weight thereof—	
Unstripped - - - - -	9 9½
Stripped - - - - -	9 10
Upon tobacco manufactured, namely—	
Cigars - - - - -	16 10
Cigarettes - - - - -	13 7
Cavendish or Negrohead - - - - -	12 10
Cavendish or Negrohead manufactured in bond -	11 2½
Other manufactured tobacco - - - - -	11 2½
Snuff containing more than 13 lbs. of moisture in every 100 lbs. weight thereof - - - - -	10 7
Snuff not containing more than 13 lbs. of moisture in every 100 lbs. weight thereof - - - - -	12 10
PART II.	
Upon tobacco unmanufactured, namely :—	
Containing 10 lbs. or more of moisture in every 100 lbs. weight thereof—	
Unstripped - - - - -	6 9½
Stripped - - - - -	6 9¾
Containing less than 10 lbs. of moisture in every 100 lbs. weight thereof—	
Unstripped - - - - -	7 6¾
Stripped - - - - -	7 6¾
Upon tobacco manufactured, namely :—	
Cigars - - - - -	12 11¼
Cigarettes - - - - -	10 5¼
Cavendish or Negrohead - - - - -	9 10¾
Cavendish or Negrohead manufactured in bond -	8 7¾
Other manufactured tobacco - - - - -	8 7¾
Snuff containing more than 13 lbs. of moisture in every 100 lbs. weight thereof - - - - -	8 1½
Snuff not containing more than 13 lbs. of moisture in every 100 lbs. weight thereof - - - - -	9 10¾

THIRD SCHEDULE.

Section 7.

MATCHES.

Containers in which there are not more than 10 s. d.
matches—

For every 1,000 such containers - - - - 6 2

Containers in which there are more than 10 matches,
but not more than 20 matches—

For every 1,000 such containers - - - - 12 4

Containers in which there are more than 20 matches,
but not more than 50 matches—

For every 144 such containers - - - - 4 4

In respect of every additional 25 matches, or part of
25 matches, over 50 in a container—

For every 144 such containers, an additional
duty of - - - - - 2 2

FOURTH SCHEDULE.

Section 17.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
61 & 62 Vict. c. 27.	The Isle of Man (Customs) Act, 1898.	Subsection (1) of section one so far as relates to tobacco.
62 & 63 Vict. c. 39.	The Isle of Man (Customs) Act, 1899.	The whole Act.
4 Edw. 7. c. 25.	The Isle of Man (Customs) Act, 1904.	The whole Act.
9 Edw. 7. c. 45.	The Isle of Man (Customs) Act, 1909.	Section two so far as relates to tobacco.
15 & 16 Geo. 5. c. 56.	The Isle of Man (Customs) Act, 1925.	The proviso to subsec- tion (1) of section ten.
16 & 17 Geo. 5. c. 27.	The Isle of Man (Customs) Act, 1926.	Section twelve. Subsection (6) of section thirteen.